

CASSATION & ECHR · 10 JAN 2001

Cassation — McDonald's application

TYPE	COURT	DATE	PARTIES
Appeal / remedy	The Court of Cassation	10 Jan 2001	From McDonald's France

SUMMARY SHEET

Application for removal from the list — McDonald's France · Court of Cassation

Overview: application submitted on behalf of SA McDonald's France by SCP Delaporte-Briard, counsel at the Conseil d'État and the Court of Cassation, against Bernard Collorafi and the companies SEBOL, B & O and LES PINS, on the basis of article 1009-1 of the new Code of Civil Procedure.

Key points

The application relates to appeal to the Court of Cassation no. X/00-14.487 lodged by Mr Collorafi and his three companies against the judgment ordering them to pay McDonald's France various sums, with interest at the statutory rate, in respect of unpaid fees. That same judgment also ordered McDonald's to pay the claimants sums in respect of the damage arising from the termination of the agreements. The application points out that the total amount awarded against McDonald's is far lower than that awarded against the claimants, who therefore remain debtors. As the latter have not paid the sums due to McDonald's under the judgment under appeal, the company requests that the appeal be removed from the list.

Significance

This document seeks to have the examination of the appeal to the Court of Cassation suspended for as long as the claimants do not comply with the appeal decision, a procedural pressure mechanism provided for by article 1009-1.

Sheet generated automatically from the transcription of the document.

Source: bernardcollorafi.org/en/documents/cassation-mcdonalds-application-removal-from-list-appeal-collorafi-2001/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.